

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN
COMPETITION****FAR 6.302-2 Unusual and Compelling Urgency 41 U.S.C. 3304(a)(2)**

J&A Control No.: 25-131

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1, the justification for the use of the statutory authority under FAR Subpart 6.3 is justified by the following facts and rationale required under FAR 6.303-2 as follows:

- a) **Agency and Contracting Activity.** The Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Office of the Component Chief Component Procurement Office (OCCPO), proposes to modify the two (2) incumbent Multiple Award Indefinite Delivery, Indefinite Quantity (IDIQ) contracts to extend the Ordering Period for FEMA's Housing Inspection Service (HIS) Contract for 150 additional days based on other than full and open competition through this J&A.
- b) **Nature and/or Description of the Action being Approved.** FEMA has a critical requirement for a continued performance under the existing Housing Inspections Services (HIS) Indefinite Delivery Indefinite Quantity (IDIQ) contracts 70FB8020D00000002 and 70FB8020D00000003 beyond their ordering period expiration dates of March 31, 2025. The extension is necessary and will allow continuous support of critical mission requirement until the competitive follow-on contracts are established and transition-in activities with the successor contractors are completed. The current period of performance ends March 31, 2025. This modification will extend the ordering period through August 28, 2025.
- c) FEMA intends to modify on a sole source basis a dual award IDIQ to extend the ordering period for 150 additional days from 04/01/2025 through 08/28/2025 in accordance with FAR 6.302-2 "Unusual and Compelling Urgency".

(a) Name and address of the contractor.

IDIQ Contract 70FB8020D00000002

Vendor: WSP USA Services, Inc. (WSP)

Address: 13530 Dulles Technology Dr Ste 300, Herndon, VA 20171-6148

Unique Entity ID (UEI): WJYVS592Z7557

IDIQ Contract 70FB8020D00000003

Vendor: Vanguard Inspection Services (VIS)

Address: 4030 W Boy Scout Blvd Ste 700, Tampa, FL 33607-5713

Unique Entity ID (UEI): F8LJV44WQY78

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(b) Contract type. Task Orders will continue to utilize Firm-Fixed-Price (FFP) and Cost-Reimbursable (CR) Line Items.

(c) Estimated total value (including options). The current IDIQ contract maximum funding limitation remains unchanged at [REDACTED]; therefore, this is a zero dollar change in contract ceiling. The total current contract ceiling availability for all contractors is [REDACTED] which is considered sufficient to meet the Government's need for 150 days of continued ordering period.

(d) Type of funding: Declared disaster projects are funded by the Disaster Relief Fund (DRF).

(e) Year of funding: Not applicable as DRF funds are no year funds.

(f) Solicitation number. Not Applicable

- d) **Background information about the requirement.** The HIS IDIQ contracts #70FB8020D00000002 and #70FB8020D000000003 were competitively awarded with an ordering period end date of September 30, 2024. They provide residential housing inspections in response of presidentially declared disasters. These contracts support the FEMA Individual Housing and Household Program (IHP) by providing for the collection and reporting of information gathered by on-site inspections regarding housing damages in a disaster declared area. On September 26, 2024, under the authority of contract clause 52.217-8 Option to Extend Services, the ordering period was extended from 10/1/2023 through 9/30/2024, to 10/1/2024 through 3/31/2025.

On January 24, 2025, FEMA competitively awarded the follow-on Individual Assistance (IA) Individual and Households Program (IHP) Field Services IDIQ Contracts 70FB8025D00000014 and 70FB8025D00000015 respectively to WSP and VIS. The IA-IHP Field Services contracts are the successor to the HIS contracts. The ordering periods for the IA-IHP contracts were expected to span from January 24, 2025, to October 31, 2029.

On or about February 11, 2025, two unsuccessful offerors under the competitively awarded IA-IHP Field Services contracts filed protests with the Government Accountability Office (GAO), which halted the follow-on contract performance until the GAO concludes its review and issues a decision. On February 28, 2025, GAO issued a decision dismissing the protests [REDACTED]

- e) **Description of Supplies/Services.** This HIS requirement is critical to FEMA's IHP which supports existing and new Presidential Disaster Declarations. The HIS contracts provide verified real time collection and information reporting gathered by on-site housing inspectors for disaster survivors. The services enable survivors to obtain direct and immediate assistance. Timely receipt of these housing inspection services ensures individuals and families impacted by disasters have access to the full range of FEMA programs in the most

expedited manner. This includes financial assistance for the repair of survivors' dwellings, personal property loss, rental assistance if the dwelling is uninhabitable, and direct housing assistance when rental resources are not available. These types of FEMA assistance cannot be paid out without these inspections. As a result, these inspections are urgently needed to assist survivors immediately after a disaster.

- f) **Identification of Statutory Authority Permitting Other Than Full and Open Competition.** The statutory authority permitting other than full and open competition is 41 U.S.C.3304(a)(2) implemented by the FAR Subpart 6.302-2, Unusual and Compelling Urgency facilitating response and recovery from potential natural disaster.

- g) **Identification of Exception to the Buy American Statute**

Not applicable.

- h) **Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.** FEMA requires continued HIS contract performance to maintain inspection services, ensuring disaster impacted individuals and families have uninterrupted access to the full range of FEMA programs. To provide sufficient time to re-award these contracts following the GAO protest and to ensure there is no interruption in providing these essential services to survivors, FEMA intends to extend the ordering period of the current IDIQ contracts.

The provision of the inspection services necessitates a team of trained and badged inspectors who have completed a background investigation conducted by FEMA's Personnel Security Division (PSD). The processes of training, badging, and conducting thorough investigations may take several months. The incumbent contractors maintain a year-round cadre of approximately 2,500 inspectors each, totaling over 5,000 inspectors across both vendors. This ensures inspectors are ready to deploy within 24 hours of a contract award.

FEMA considered utilizing its current in-house cadre of inspectors to complete inspections until the follow-on acquisition protests are resolved. However, FEMA's in-house cadre is not sufficient to meet the needs of disaster survivors in the event of a large disaster, such as a hurricane landfall or flooding in a major metropolitan area. FEMA may not receive adequate warning of a disaster or the extent of the disaster in time to perform contracting actions and respond in a timely fashion.

There are no other known contractors currently doing business with FEMA with the necessary technical proficiency, relevant experience, qualified staff who have completed FEMA's PSD background investigation, and capacity that can fulfill this requirement. Additionally, the contractor must be able to ramp up their operations quickly, with the ability to scale resources as needed in response to fluctuating demands during a disaster. Use of pre-

positioned contracts is essential to ensure FEMA can respond as rapidly as possible to the HIS needs of disaster survivors.

Even if capable contractors were available, competition and award to different contractors for every disaster would take far longer than the 24-hour turn-around time needed to effectively respond to disasters.

Absent an extension, FEMA would not be able to adequately support disaster response and recovery for survivors and communities because we will be unable to perform the necessary housing inspections to determine the eligibility of survivors for assistance. In the event of multiple large-scale disasters throughout the nation, FEMA would be put in a vulnerable position without having the capability to deliver the right resources to the right place at the right time in support of state, local, tribal, Governments and territories.

In view of the considerations highlighted above, continuation of the HIS IDIQs through other than full and open competition is consistent with 41 U.S.C.3304(a)(2) and FAR Subpart 6.302-2 because of the unusual and compelling urgency of the situation.

i) **Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.** In anticipation of this action, the Contracting Officer did not post a Sources Sought or Request for Information (RFI) notification on SAM.gov; however, in the past 24 months FEMA took the following actions:

- a) Posted a Request for Information to SAM.gov in April 2022.
- b) Conducted an industry day for interested vendors in April 2023.
- c) Conducted one-on-one market research meetings with eight (8) vendors in February 2024.
- d) Initiated the follow-on acquisition by posting a request for proposals in July 2024 and receiving 9 responses.

GAO dismissed the protests filed on February 28, 2025, since FEMA is taking corrective action to [REDACTED] re-award the follow-on competitive acquisition and ensure the prompt establishment of the new, competitively awarded IA-IHP Field Services contract. Additionally, the fully executed Justification and approval will be posted to SAM within 30 days of the modification award, in compliance with FAR 6.302 regarding the availability of the Justification.

j) **Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.** The Contracting Officer determines that the anticipated cost(s) to the Government will be fair and reasonable based on historical prices (FAR 15.404-1(b)(2)(ii)), an independent government estimate (FAR 15.404-1(a)(2)(v)), and the pricing being based upon previously negotiated/competed prices under the current contracts (FAR 15.404-1(b)(2)(ii)). Wage Determination rates will be used to establish the minimum basis

for personnel pay. The existing contracts are structured with cost reimbursement contract line-item numbers so CLINs for items such as other direct cost for travel will be reimbursed only for reasonable, allowable, and allocable costs. These measures will provide FEMA confidence that cost will not substantially increase for this action and will be used to establish that the price is fair and reasonable.

- k) **Description of Market Research.** Market research was conducted prior to the award of the current contract in 2019 and was conducted in June 2024 and September 2024 for the follow-on contract. The market research showed the FEMA dual award IDIQ contract continues to be the most efficient contracting vehicle for providing HIS. The ramp-up requirements make it impossible for other potential sources to immediately perform the work required under the HIS contract, creating an urgent need for continuity in services without delay. It is currently not feasible to finalize the awarding of a new contract within approximately 15 days before the expiration of the existing contract. No additional market research was conducted for this 150-day extension.

Based on the capability statements submitted, the historical performance demonstrated by contractors, and the competitive market demand, the industry has the capacity to deliver. The competitively procured follow-on IA-IHP Field Services contract is expected to be awarded soon.

Given the circumstances, it is impossible to award a new contract within approximately 15 days before the incumbent contract lapses. The complexity and scope of the procurement process, combined with the time required for the necessary evaluation, review, and protest resolution procedures, make it impractical to complete the competitive bidding and award process within the designated timeframe. An extension of the existing contract is necessary and justified to avoid a gap in critical services and to ensure the continuation of essential operations.

- l) **Any Other Facts Supporting the Use of Other Than Full and Open Competition.** Individual Tak Orders under would be competed amongst the IDIQ holders.
- m) **A Listing of the Sources, if Any That Expressed, in Writing, an Interest in the Acquisition.** Not Applicable
- n) **A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.** FEMA is currently working on positioning the new and competitively awarded contracts to ensure future needs are met by taking corrective action to reevaluate and re-award the contracts. This J&A will allow the HIS contract to temporarily remain in place to prevent any disruption in services during this process, until a competitively awarded contract is in place.

Office of the Chief Procurement Officer

- o) Contracting Officer's Certification. I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.



Contracting Officer



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Date

- p) Technical/Requirements Personnel Certification. I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.



Technical Representative

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Date

APPROVAL:



Contracting Officer

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Date

Note: The Contracting Officer is the final approving official when the action  and must also sign the justification when the contract is awarded under FAR 6.302-7, Public Interest, regardless of dollar amount.



Procuring Activity Advocate for Competition

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Note: The Procuring Activity Advocate for Competition (PAAC) is the final approving official when the action exceeds  and must also sign the justification when the contract is awarded under FAR 6.302-7 *Public Interest*, regardless of dollar amount. Approval by the PAAC is not required if the J&A is reviewed and approved by an official designated by the Component who meets either of the criteria at FAR 6.304(a)(3)(i) or (ii). 